IN THE SUPREME COURT OF PAKISTAN
Present:
* Hon'ble Mr. Justice Jamal Khan Mandokhail
* Hon'ble Mr. Justice Hasan Azhar Rizvi

Civil Appeal No. 751 of 2021
Citation: 2021 SCMR 2014
Matter ID: MAT-CORP-2021-073

BETWEEN:
Habib Bank Limited ... Appellant / Petitioner
VERSUS
Election Commission of Pakistan ... Respondent

LEGAL TOPIC: Corporate - Director Disqualification
STATUTES CITED: Companies Act 2017, S. 153, S. 204, Securities and Exchange Commission of Pakis tan Act 1997

JUDGMENT
1. This judgment disposes of Civil Appeal No. 751 of 2021, directed against the final judgment rendered by the court below.
2. We have heard the learned counsel for the petitioner as well as the learned Additional Attor ney General and perused the record with their able assistance.
3. The principal question requiring determination is:
Whether the impugned order violates principles of natural justice and Article 10A of the Con stitution?
4. Learned counsel for the appellant vehemently argued that the statutory safeguards embodied i n Companies Act 2017, S. 153 were disregarded, thereby causing grave miscarriage of justice. On the contrary, learned counsel for the respondent defended the impugned judgment, asserting tha t full opportunity of hearing was afforded.
5. Having evaluated the record and relevant case law, it is well-settled that procedural law is handmaid of justice and cannot be weaponized to thwart substantive rights. The evidence on rec ord clearly supports the findings arrived at.
6. HOLDING & RATIO DECIDENDI:
In view of the clear mandate of law laid down under Companies Act 2017, S. 153 and guaranteed f undamental rights, this petition is allowed. The impugned judgment is set aside and matter is r emanded for decision afresh on merits.

Decided on: 5 October 2021.